Amendment of section 153.

75. In section 153 of the Income-tax Act,—

(*I*) in sub-section (1),—

(*a*) in the third proviso, the words "or after" shall be omitted;

(*b*) after the third proviso, the following proviso shall be inserted, namely:—

"**Provided also** that in respect of an order of assessment relating to the assessment year commencing on or after the 1st day of April, 2022, the provisions of this sub-section shall have effect, as if for the words "twenty-one months", the words "twelve months" had been substituted.";

(*II*) in sub-section (1A), for the words "nine months", the words "twelve months" shall be substituted;

(*III*) in sub-section (3),—

(*a*) for the words, brackets and figures "sub-sections (1) and (2)", the words, brackets, figures and letter "sub-sections (1), (1A) and (2)" shall be substituted;

(*b*) for the words "Principal Commissioner or Commissioner" at both the places where they occur, the words "Principal Chief Commissioner or Chief Commissioner or Principal Commissioner or Commissioner, as the case may be," shall be substituted;

(*IV*) after sub-section (3), the following sub-section shall be inserted, namely:—

"(3A) Notwithstanding anything contained in sub-sections (1), (1A), (2) and (3), where an assessment or reassessment is pending on the date of initiation of search under section 132 or making of requisition under section 132A, the period available for completion of assessment or reassessment, as the case may be, under the said sub-sections shall,—

(*a*) in a case where such search is initiated under section 132 or such requisition is made under section 132A;

(*b*) in the case of an assessee, to whom any money, bullion, jewellery or other valuable article or thing seized or requisitioned belongs to;

(*c*) in the case of an assessee, to whom any books of account or documents seized or requisitioned pertains or pertain to, or any information contained therein, relates to,

be extended by twelve months.";

(*V*) in sub-section (4), for the words, brackets and figures "sub-sections (1), (2) and (3)" at both the places where they occur, the words, brackets, figures and letters "sub-sections (1), (1A), (2), (3) and (3A)" shall be substituted;

(*VI*) in sub-section (5), for the words "the Principal Commissioner or Commissioner", the words "the Principal Chief Commissioner or Chief Commissioner or Principal Commissioner or Commissioner, as the case may be," shall be substituted;

(*VII*) in sub-section (6),—

(*a*) in the opening portion, for the words, brackets and figures "sub-sections (1) and (2)", the words, brackets, figures and letter "sub-sections (1), (1A) and (2)" shall be substituted;

(*b*) in clause (*i*), after the words "passed by the", the words "Principal Chief Commissioner or Chief Commissioner or" shall be inserted;

(*VIII*) in *Explanation 1*,—

(*a*) in clause (*iv*),—

(*i*) in the opening portion, after the word "audited", the words "or inventory valued" shall be inserted;

(*ii*) in sub-clause (*a*), after the words "such audit", the words "or inventory valuation" shall be inserted;

(*b*) in the first proviso, for the words, brackets and figures "sub-sections (1), (2)", the words, brackets, figures and letter "sub-sections (1), (1A), (2)" shall be substituted.

कोष मूलो दण्ड:
INCOME TAX DEPARTMENT